

SECTION-V
SPECIAL CONDITIONS
OF CONTRACT [SCC]

SPECIAL CONDITION OF CONTRACT (SCC)

1.0 GENERAL:

The "Special Conditions of Contract [SCC]" shall be read in conjunction with the "General Purchase Condition [GPC]", "Schedule of Rates [SOR]", "Technical Specifications" and any other document forming part of the Contract, wherever the context so requires. Notwithstanding, the sub-divisions of the documents into separate sections, each part shall be deemed to be supplementary of every other part and shall be read with and into the Contract so far as it may be practicable to do so. Wherever any portion of the "GPC" is repugnant to or at variance with any provisions of the "SCC", unless a different intention appears the provisions of the "SCC" shall be deemed to override the provisions of "GPC", and shall to the extent of such repugnancy or variations, prevail. In case of any contradiction, the decision of the GAIL will be final and binding on the seller. Where it is mentioned in the specification that the Seller shall perform certain work or provide certain facilities, it is understood that the seller shall do so at his own cost, and the "seller Price" shall be deemed to have included cost of such performance and provisions, so mentioned.

2.0 DELIVERY SCHEDULE:

The Good(s) shall be delivered **at respective Consignee Location(s)** within **Three (03) months (90 Days)** from the date of award of GeM contract order/Letter of Intent/Acceptance whichever is issued earlier. The non-completion of supply within stipulated time shall attract Price Reduction Schedule (PRS).

Date of receipt of Goods at respective Consignee Location(s) shall be considered as the date of delivery for the purpose of applicability and calculation of PRS.

3.0 BILL OF QUANTITY:

Item Number	Item Title	Item Description	Item Quantity	Unit of Measure
1	Supply & Installation of 2 Ton SPLIT AC 5 STAR with Inverter Technology.	As per SoW and Technical Specs (Section VI & VII) given in GAIL Tender	8	EA
2	Copper Piping with Nitril Insulation		160	FT
3	PVC Drainpipe		130	FT
4	Cable insulated 3 core, 2.5 Sq.mm, Copper cable		240	M

4.0 TERMS OF DELIVERY:

Material must be dispatched on **FOT Site basis** & GST Invoicing to be done as per the following address:

GAIL (India) Ltd.
Kailaras Compressor Station
Rithoniya, Morena, Madhya Pradesh – 476224.
(GST No. 23AAACG1209J1Z4)

Kind Attention:

- Freight to be arranged and borne by Seller on pre-paid basis. However, Transit insurance will be arranged by GAIL and the details of applicable Insurance policy will be mentioned in the purchase order.
- Quoted Prices shall remain firm & fixed till complete execution of the order except statutory variation in taxes & duties during contract period. Statutory variation in taxes & duties during contract period shall be reimbursed by GAIL against documentary evidence only.

5.0 PAYMENT TERMS:

80% payment will be released against the complete supply of all materials at site & acceptance of the materials by GAIL and remaining 20% will be released after successful installation & commissioning of the required SOR items as per EIC instructions in all respects.

All payments shall be made through electronic mode (e-banking) within **15 days** from date of receipt and acceptance of material at GAIL site and uploading of Digitally signed invoice by the vendor on SPARSH portal.

All taxes, duties, levies shall be deducted/applicable from the bill as per the applicable rules, regulations and amendments of the government directives as notified from time to time.

Note: -

- i. GAIL has introduced VIM Portal (Vendor Invoice Management Portal) for Processing of Invoices. All the Bills shall be processed online through VIM Portal only.
- ii. The Vendor shall raise its Bills against acceptance of material by GAIL in VIM **SPARSH Portal**.
- iii. The Vendor shall submit Digitally Signed Invoice (Preferably GST e-Invoice) in VIM Sparsh Portal. Invoice should be serially numbered, with proper date and digitally signed as per the Performa prescribed for GST invoice indicating GAIL's GST number.
- iv. Paying Authority: VIM

6.0 VENDOR INVOICE MANAGEMENT PROVISION (VIM):

GAIL has implemented Vendor Invoice Management (VIM) system titled as 'SARATHI' for automation, digitization & centralization of Account Payable process w.e.f. 01.04.2023.

Supplier/ Contractor/Service Provide/ Consultant is required to upload digital invoice on 'Sparsh' portal. The system optimizes and simplifies the process of receiving, managing, monitoring and forwarding invoices for payment process. The link of 'Sparsh' portal is as under:

<https://sparsh.gail.co.in/flipper/#/login>

The 'Help Manual' hyperlink to access the detailed User Manual, Demo Videos, FAQ's and other relevant information is available on 'Sparsh' portal. Only digital invoice is to be uploaded on 'Sparsh' portal and all other supporting documents along with copy of invoice are to be submitted to concerned as defined in Purchase Order (PO)/ Letter of Acceptance (LOA).

7.0 Mobilization Period & Penalty:

The contractor shall be allowed 15 days as mobilization period from date of receipt of material at site and during this period contractor has to complete all formalities e.g. submission of PBG, signing of agreement, etc.

No mobilization advance shall be paid by GAIL. Further, In case of failure of mobilization of contractor within 15-days from date of receipt of material at Gail Site, a penalty of ₹ 1000/- per day shall be levied.

8.0 PRICE REDUCTION SCHEDULE (PRS):

The vendor shall have to carry out the specific job as per the time schedule specified in the LOA and if the vendor fails to complete the job within that specified time period, the vendor shall be liable to pay compensation to GAIL @0.5% per week or part thereof on the undelivered portion subject of maximum of 5% of the contract price.

However, total Price Reduction Schedule charged on account of all of the above shall not be more than 5% of the total contract value.

9.0 WORKING HOURS:

Installation work shall normally be allowed from 9:30 am to 5:30 pm on working days. However, permission can be granted for working beyond these hours upon specific request from the agency.

10.0 RESPONSIBILITY OF VENDOR:

The vendor shall deploy technicians who have suitable skill and experience in installation & commissioning of the supplied SOR items. GAIL reserves the right to reject any of the people deployed by the vendor found unsuitable for the work.

At the time of Bidding, Bidder/Vendor need to submit technical catalogue of 2.0 Ton Split AC in compliance to the Technical Specification mentioned in the tender document.

The technician engaged by the vendor should be well qualified and experienced to discharge the contractual obligations effectively.

All the jobs have to be carried out on top priority basis and to be completed in all respect within the time specified.

In case the vendor leaves any job incomplete or fails to complete it in stipulated time or not up to the satisfaction of Engineer-In-Charge/ Site-In-Charge, then that job will be done through any other agency at the cost of the vendor.

The personnel to be deputed by the vendor should also be medically fit to work at site and should possess good conduct and discipline.

11.0 TRANSPORTATION / CONVEYANCE:

The vendor shall make his own arrangement for the transportation of his men and materials to the place of work on all the days and time. Vendor shall also make arrangements for lodging & boarding of its technician & cost of the same is deemed to be included in the quoted price.

12.0 GATE PASS / IDENTITY CARD:

The vendor shall make / renew at his own cost gate pass/ identity cards if so required by GAIL for security or any other reasons. The GAIL may only endorse such passes on recommendation of the vendor.

13.0 INSURANCE:

The bidder shall ensure insurance cover to his men, material, machinery and equipment. The GAIL shall not be liable to any claim for accident/loss/theft during execution of work or during the transportation /stay or at any point of time during contract period or during the defect liability period, if any.

Declaration, in this regard shall be given by party to the site, at the time of audit, that all its auditors are covered under applicable & suitable Insurance. GAIL, in any case & at any point of time, will not be held responsible for any mishap, injury, illness, etc. to the auditors during the audit or during the entire course of audit.

14.0 HSE REQUIREMENT:

The personnel to be deputed by the contractor shall observe security, fire and safety rules of GAIL while at site. Contractor shall ensure that all safety precautions required one observed at all times during the execution of the job. All the jobs must be carried out under the safety work permit system of GAIL.

Vendor will provide safety shoes, hand gloves to workers and other PPEs like Helmet and Safety belt as and when required. No technician/helper shall be allowed on duty without wearing applicable safety gears. Contractor shall comply with all applicable Safety laws and other laws including but not limited to contract labour (R&A) Act, 1970 etc. Contractor should be conversant with labour laws and regulations in practice and shall keep the GAIL, harmless and indemnified against any action brought against it for any violation/non-compliance of any act, etc. Any new law enforced/amendments/guidelines issued by statutory authority/HR Dept. of GAIL issued from time to time shall be followed by contractor in to, without any cost implication to GAIL in the complete contract period.

15.0 WARRANTY/GUARANTEE:

As per GPC (Section-IV)

16.0 CONTRACT PERFORMANCE SECURITY:

Applicable.

NOTE:

- Technical Specifications Shall be as per the details mentioned in Section-VI of this tender document. Bidder shall confirm the technical specification as per Section-VI only.

All other terms & conditions shall be applicable as per General Purchase Conditions (GPC) of the tender document.

[Bidder's Seal and Signature]

SECTION-VI
TECHNICAL
SPECIFICATIONS

Technical Specifications

1. Split AC 2.0 Ton, Wall Mount Type (SAP Code – 9325803101)

Sl. No.	Particulars	Specification	Bidders confirmation
1.	Acceptable Make	Blue Star, Voltas, Lloyd, LG, Carrier, Hitachi, Haier, Onida, Mitsubishi, O General, Daikin, Godrej, whirlpool, Samsung and Panasonic only	Make- Model- (Kindly specify)
2.	Nominal Capacity	Min. 2.0 Ton of refrigeration	
3.	Function	Cooling only	
4.	Cooling Capacity	6000-7736 (in Watt) as per 2 TON	
5.	Technology	Inverter (Variable Speed)	
6.	ISEER	5.0 or above	
7.	BEE Star Rating	5 Star	
8.	IS standard	IS 1391 latest	
9.	Modes of Operation	Power saving/ Cool/ Fan/ Dry	
10	Sleep Mode	Required	
11	Timer On/ Off	Required	
12	Speed Control of Fan	Required (Auto/ High/ Medium/ Low)	
13	Self-Diagnosis	Required	

14	Material of Condenser and Evaporator coil	Copper	
15	Remote	Required	
16	Refrigerant	Eco-Friendly and Zero Ozone Depletion	
17	Comprehensive Warranty on Air Conditioner/Machine along with warranty card	12 months from date of installation at site or 18 months from date of award of PO (whichever is earlier)	
18	Warranty on Compressor along with warranty card	Min 10 years	
19	Warranty on PCB along with warranty card	Min 5 years	
20	Installation and Commissioning	Free	
21	Mandatory Accessories required for the installation	• Stand for Outdoor Unit • copper Pipe of standard length (3m) for both inlet & outlet • Cable: PVC insulated, 3 core, 2.5 Sq.mm, Copper cable of 3 m as per IS1554, IS7098	

		• AC Junction Box:2 Pole 16A MCB (Make: Havells preferably) +Industrial AC Plug top+ AC Socket for each AC.	
22	Catalogue Submitted	Please provide Brand Catalogue of the Offered MAKE & MODE.	

NOTE:

1. Non-compliance to above specification may result in REJECTION of bid. (Above Technical Specification to be accepted without any deviations).
2. Bidder must clearly furnish all details in Data Sheet/Technical Specification (Bidder's Confirmation Column).
3. All the specifications must be necessarily filled in. Any point left out is deemed as not accepted and Bid may be liable for rejection without any query thereof.

[Bidder's Seal and Signature]

SCOPE OF WORK

The work is to be carried out at Kailaras Compressor Station, GAIL India Limited, Village-Rithonia Distt. - Morena, M.P., Pin: 476224.

It is understood that the Scope of Work includes Supply, Installation, Testing and Commissioning of ACs, providing any/all facilities as required for completing the work as per the terms and conditions of tender document & direction of Engineer In-Charge/ Site In-Charge. The vendor shall be responsible to complete the entire work in all respects and any of the work necessary to complete the job though specifically not covered in the Scope of Work mentioned below.

It is understood that before quoting the rates, the vendor has visited the work sites and has acquainted himself fully with the nature and quantum of work to be done. Ignorance of this, after award of contract will not be considered.

All expenses towards mobilization and demobilization of ACs at site, work forces, materials required for dismantling the old ACs, clearing the site etc., shall deemed to be included in the prices quoted and no separate payment on account of such expenses shall be entertained.

Scope of Work includes but not limited to the followings:

1. Installation, Testing & Commissioning of Air Conditioner, Split, 230V AC, 50Hz, 2.0 Ton

- a) Delivery of ACs at site as per SOR on buy-back basis.
- b) Vendor has to carry his own tools & tackles for installation of the ACs at site.
- c) Removal of existing AC's without any damage.
- d) Making cut hole of required diameter in the wall.
- e) Supply & fixing of stand for Outdoor Unit.
- f) Supply & fixing of mounting frame for Indoor Unit.
- g) Installation of Indoor & Outdoor Units.
- h) Supply & Fixing of the following mandatory accessories required per each AC and the cost of the same is deemed to be included in the quoted prices of Line Item-A only.
 - i) Stand for Outdoor Unit
 - ii) copper Pipe of standard length (3m) for both inlet & outlet
 - iii) Cable: PVC insulated, 3 core, 2.5 Sq.mm, Copper cable of 3 m as per IS1554, IS7098
 - iv) AC Junction Box: 2 Pole 16A MCB (Make: Havells preferably) + Industrial AC Plug top+ AC Socket for each AC.
- i) **In addition to the above accessories, the items listed in Line item-B of the SOR shall be supplied according to the rates specified in the SOR.**
- j) Supply & installation of anchor fastener, screw, PVC gulli etc. for fixing of stand, frame, casing/ conduit etc.
- k) **Brick work, plastering, hole filling, painting etc. required to retrieve the aesthetics of the installation site, is in the scope of the vendor. Vendor should**

supply all the necessary materials in this regard and cost of the same is deemed to be included in the quoted price.

- l) Connecting the indoor unit to the MCB box with a single length cable. No joint shall be permitted in the connecting cable. If the manufacturer supplied cable seems short then vendor shall replace it with single piece of same core cable without any joint to the indoor unit. Standard length of supply shall be 5m. Cost of the same is deemed to be included in the quoted price.
- m) Cabling from indoor unit to the MCB box shall be through casing/ conduit. The vendor shall supply & install the required quantity of casing/ conduit.
- n) Commissioning of the AC & checking of performance in the presence of Engineer in Charge of GAIL.

[Bidder's Seal and Signature]